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Brochure on Casual Labourers

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Brochure on Casual Labourers and Instructions

Casual Labourers (Grant of Temporary Status and Regularization) Scheme, 1993

1. Title and Commencement

This scheme shall be called "Casual Labourers (Grant of Temporary Status and Regularization) Scheme of Government of India, 1993." This Scheme will come into force w.e.f. **01.09.1993** (Notification on **10.09.1993**).

2. Applicability

This scheme is applicable to casual labourers in employment of the Ministries/Departments of Government of India and their attached and subordinate offices, on the date of issue of these orders.

But it shall not be applicable to casual workers in Railways, Department of Telecommunication, and Department of Posts who already have their own schemes.

Note: The Department of Posts OM No. 2-10/88-PE-I dated **04 February 1997**, intimated all Heads of Postal Circles about a complete ban on recruitment of casual workers and of the requirement to obtain prior approval for such recruitment from the Directorate.

3. Temporary Status

(a) Temporary status would be conferred on all casual labourers who are in employment on the date of issue of this OM and who have rendered a continuous service of at least **one year**, which means that they must have been engaged for a period of at least **240 days (206 days** in the case of offices observing **5 days** week).

(b) Such conferment of temporary status would be without reference to the creation/availability of regular MTS posts.

(c) Conferment of temporary status on a casual labourer would not involve any change in his duties and responsibilities. The engagement will be on daily rates of pay on a need basis.

(d) Such casual labourers who acquire temporary status will not be brought on to the permanent establishment unless they are selected through a regular selection process for MTS posts.

4. Benefits of Temporary Status

Temporary status would entitle the casual labourers to the following benefits:

- **Wages:** Wages at daily rates with reference to the minimum of the pay scale for a corresponding regular MTS official including Dearness Allowance (DA) and House Rent Allowance (HRA).

- **Increments:** Benefits of increments at the same rate as applicable to an MTS employee would be taken into account for calculating pro-rata wages for every **one year** of service subject to performance of duty for at least **240 days (206 days** in administrative offices observing **5 days** week) in the year from the date of conferment of temporary status.
 - **Leave Entitlement:** Leave entitlement will be on a pro-rata basis at the rate of **one day** for every **10 days** of work. Casual or any other kind of leave, except maternity leave, will not be admissible. They will also be allowed to carry forward the leave at their credit on their regularization. They will not be entitled to the benefits of encashment of leave on termination of service for any reason or on their quitting service.
 - **Maternity Leave:** Maternity leave to lady casual labourers as admissible to regular MTS employees will be allowed.
- **LEGISLATIVE NOTE:** Currently, the admissible Maternity Leave is **26 weeks** for the first two surviving children, pursuant to the *Maternity Benefit (Amendment) Act, 2017*.
- **Retirement Benefits:** 50% of the service rendered under temporary status would be counted for the purpose of retirement benefits after their regularization.
 - **GPF and Advances:** After rendering **three years** continuous service after conferment of temporary status, the casual labourers would be treated on par with temporary MTS employees for the purpose of contribution to the General Provident Fund (GPF), and would also further be eligible for the grant of Festival Advance/Flood Advance on the same conditions as are applicable to temporary MTS employees, provided they furnish two sureties from permanent Government servants of their department.
- **LEGISLATIVE NOTE:** For employees regularized on or after **01.01.2004**, the National Pension System (NPS) is applicable instead of GPF, unless covered by specific judicial relief or recent DoP&T OM dated **03.03.2023** regarding coverage under CCS (Pension) Rules for vacancies occurring prior to the notification of NPS.
- **Bonus:** Until they are regularized, they would be entitled to Productivity Linked Bonus/Ad-hoc bonus only at the rates as applicable to casual labourers.

5. Termination of Service

Despite conferment of temporary status, the services of a casual labourer may be dispensed with by giving a notice of **one month** in writing. A casual labourer with temporary status can also quit service by giving a written notice of **one month**. The wages for the notice period will be payable only for the days on which such casual worker is engaged on work.

6. Procedure for Filling up MTS Posts

Two out of every three vacancies in MTS cadres in respective offices where the casual labourers have been working would be filled up as per extant recruitment rules and in accordance with the instructions issued by DoP&T from amongst casual workers with temporary status. On regularization of a casual worker with temporary status, no substitute in his place will be appointed as he was not holding any post.

DoP&T Instructions

General Guidelines

1. Person on daily wages (Casual workers) should not be recruited for work of regular nature.
2. Recruitment of daily wager may be made only for work which is casual or seasonal or intermittent nature or for work which is not full-time nature, for which regular posts cannot be posted.
3. Where the nature of work entrusted to the casual workers and regular employees is the same, the casual workers may be paid at the rate of **1/30th** of the pay at the minimum of the relevant pay scale plus dearness allowance for work of **8 hours** a day.
4. The casual workers may be given **one paid weekly off** after **six days** of continuous work.
5. The payment to the casual workers may be restricted only to the days on which they actually perform duty under the Government with a paid weekly off as mentioned above. In addition, they will also be paid for a National Holiday, if it falls on a working day for the casual workers.
6. It has further been decided that casual workers working in offices having a **five-day week** may be allowed **one day** paid weekly off provided they have worked for a minimum of **40 hours** during the said week.

Leave and Service Conditions

- **Leave Credit Frequency:** Twice a year—**1st January** and **1st July** on a pro-rata basis at the rate of **one day** for every **10 days** of work.
- **Legal Protection:** The Hon'ble Supreme Court while hearing SLP (Civil) No. 2224/2000 in the case of *Union of India & Anr. Vs. Mohan Pal etc.* ruled that the casual labourers who have acquired 'temporary' status shall not be removed from service of the Scheme. If there is serious misconduct or violation of service rules, it would be open to the employer to dispense with the services of a casual labourer who had acquired the 'temporary' status.

- **Transport Allowance:** The benefit of Transport allowance was extended to casual labourers having temporary status. Physically handicapped casual labourers having temporary status were entitled to transport allowance at **double the normal rate** subject to terms and conditions.
- **Leave Accumulation Limit:** It was clarified that the limit on accumulation of total number of days of leave will be **300 days** as in the case of regular Government employees. In other words, CL-TS can accumulate leave up to a maximum of **300 days** only.

Paternity Leave

Paternity leave as admissible to regular Government employees was also extended to the casual labourers with temporary status and who has less than **two surviving children** may be granted Paternity leave for a period of **15 days** during the confinement of his wife. During the period of such leave, he shall be paid wages drawn immediately before proceeding on leave. Paternity leave was not be debited against the leave account and could be combined with pro-rata earned leave admissible to casual employees under Casual Labourers (Grant of Temporary Status and Regularization) Scheme of Government of India, 1993.

Wages and 7th CPC

Casual employees who have been granted temporary status were entitled to Transport Allowance for computation of their daily rates of wages.

On the implementation of the recommendations of the **7th CPC**, the Casual labourers with Temporary Status will continue to receive their wages with effect from **01.01.2016** as per provisions of the Casual Labours (Grant of Temporary Status & Regularization) Scheme, worked out on the basis of the pay scales of Group 'C' as per **Level 1** of the Pay Matrix recommended by the **7th CPC** and approved by the Government provided they are matriculate.

Absorption into MTS

Absorption of all temporary status casual labourers and full-time casual labourers as MTS is distributed as follows:

- From GDS: **75%**
- From Casual Labourers: **25%**

□ **LEGISLATIVE NOTE:** The *Department of Posts (Multi Tasking Staff) Recruitment Rules, 2018* (notified on **16.08.2018**) and subsequent amendments govern current recruitment. While the source text indicates a 25% quota, current rules prioritize GDS based on seniority, and Casual Labourers engaged on or before **01.09.1993** are considered for remaining vacancies in specific scenarios. Aspirants should refer to the 2018 Rules for the most current vacancy calculation method.

DoP&T Instructions on Casual Labourers

1. Restriction on Engagement

Persons on daily wages (Casual workers) should not be recruited for work of regular nature.

2. Conditions for Recruitment

Recruitment of daily wagers may be made only for work which is of casual or seasonal or intermittent nature, or for work which is not of full-time nature, for which regular posts cannot be created.

3. Wages for Corresponding Work

Where the nature of work entrusted to the casual workers and regular employees is the same, the casual workers may be paid at the rate of **1/30th** of the pay at the minimum of the relevant pay scale plus Dearness Allowance for work of **8 hours** a day.

4. Weekly Off

The casual workers may be given **one paid weekly off** after **six days** of continuous work.

5. Payment Restrictions & Holidays

The payment to the casual workers may be restricted only to the days on which they actually perform duty under the Government with a paid weekly off as mentioned above. In addition, they will also be paid for a National Holiday, if it falls on a working day for the casual workers.

6. Five-Day Week Offices

It has further been decided that casual workers working in offices having a **five-day week** may be allowed **one day** paid weekly off provided they have worked for a minimum of **40 hours** during the said week.

7. Leave Credit System

Frequency at which leave will be credited: Twice a year—on **1st January** and **1st July** on a pro-rata basis at the rate of **one day** for every **10 days** of work.

8. Protection Against Removal (Legal Precedent)

The Hon'ble Supreme Court, while hearing SLP (Civil) No. 2224/2000 in the case of *Union of India & Anr. Vs. Mohan Pal etc.*, ruled that the casual labourers who have acquired "temporary" status shall not be removed from service of the Scheme. If there is serious misconduct or violation of service rules, it

would be open to the employer to dispense with the services of a casual labourer who had acquired the "temporary" status.

9. Transport Allowance

The benefit of Transport Allowance was extended to casual labourers having temporary status. Physically handicapped casual labourers having temporary status were entitled to Transport Allowance at **double the normal rate**, subject to terms and conditions.

10. Leave Accumulation Limit

It was clarified that the limit on accumulation of total number of days of leave will be **300 days** as in the case of regular Government employees. In other words, Casual Labourers with Temporary Status (CL-TS) can accumulate leave up to a maximum of **300 days** only.

11. Paternity Leave Eligibility

Paternity leave as admissible to regular Government employees was also extended to the casual labourers with temporary status. A male casual labourer who has less than **two surviving children** may be granted Paternity leave for a period of **15 days** during the confinement of his wife.

12. Paternity Leave Payment & Accounting

During the period of such leave, he shall be paid wages drawn immediately before proceeding on leave. Paternity leave was not to be debited against the leave account and could be combined with pro-rata earned leave admissible to casual employees under the *Casual Labourers (Grant of Temporary Status and Regularization) Scheme of Government of India, 1993*.

13. Computation of Wages

Casual employees who have been granted temporary status were entitled to Transport Allowance for computation of their daily rates of wages.

14. Applicability of 7th CPC

On the implementation of the recommendations of the **7th CPC**, the Casual Labourers with Temporary Status will continue to receive their wages with effect from **01.01.2016** as per provisions of the *Casual Labourers (Grant of Temporary Status & Regularization) Scheme*, worked out on the basis of the pay scales of Group 'C' as per **Level 1** of the Pay Matrix recommended by the **7th CPC** and approved by the Government, provided they are matriculate.

15. Absorption into MTS Cadre

The absorption of all temporary status casual labourers and full-time casual labourers as Multi Tasking Staff (MTS) is prescribed as follows:

- From Gramin Dak Sevak (GDS): **75%**
- From Casual Labourers: **25%**

□ **LEGISLATIVE NOTE:** The recruitment logic has been updated by the *Department of Posts (Multi Tasking Staff) Recruitment Rules, 2018*. Currently, **50%** of vacancies are filled by GDS based on seniority, **25%** by GDS via competitive examination, and **25%** by Casual Labourers conferred with temporary status engaged on or before **01.09.1993**. If no eligible Casual Labourers are available, the unfilled quota is transferred to the GDS competitive examination stream. (Updated 2025).

